

Also, even if the doctrine of collateral estoppel did not apply here, the court would reach the same result as the court in the PAGA action. The court's order compelling the parties to arbitration in this case found that the attempted waiver of the right to bring PAGA claims in the arbitration agreement was unconscionable and unenforceable. The court then severed the language regarding waiver of the right to bring PAGA claims and enforced the rest of the agreement. (Court's April 12, 2023 Order Granting Petition to Compel Arbitration, p. 8, lines 13-21.) The court also declined to dismiss any representative claims under PAGA, and instead stayed the case pending resolution of the arbitration of plaintiff's individual claims. (*Id.* at p. 8, lines 24-26.) The court in the related PAGA action made a similar order, which sent plaintiff's individual PAGA claims to arbitration and stayed the case regarding the representative claims. (Court's Order of August 17, 2023 in case no. 23CECG00936, p. 5.)

Thus, the courts in the two related actions never compelled arbitration of the representative PAGA claims, and the arbitrator had no jurisdiction to dismiss those claims. Consequently, the arbitrator exceeded his authority to the extent that he purported to dismiss the representative PAGA claims. As a result, the court will not confirm the portion of the arbitrator's award that purports to dismiss the representative PAGA claims. Instead, the court will correct the award by striking out the language that purports to dismiss the representative PAGA claims and dismiss the PAGA action.

Specifically, the court will strike "all" at line 6 of page 2 of the order, insert the word "individual" between "the PAGA" at line 6 of page 2, strike "and the entire case entitled *Ariel Reyes et al. v. Mad Duck Brewing, LLC, et al.*, filed in Fresno County Superior Court as Case No. 23CECG00936, is dismissed with prejudice" at page 2 lines 7 through 9, and to strike "and are dismissed with prejudice from both civil cases entitled *Ariel Reyes et al. v. Mad Duck Brewing LLC, et al.*, filed in Fresno County Superior Court as Case Nos. 22CECG02134 and 23CECG00936. The entirety of the civil case entitled *Ariel Reyes et al. v. Mad Duck Brewing, LLC, et al.*, filed in Fresno County Superior Court as Case No. 23CECG00936, is also dismissed with prejudice" at page 2, beginning at line 13 and continuing through line 17.

However, the court will confirm the rest of the arbitrator's award, as plaintiff has not shown that the award is defective in any other way. Indeed, the court in the related PAGA action has already confirmed the rest of the award and entered judgment thereon, subject to the corrections noted by the court. The court in the present case intends to do the same. Accordingly, the court intends to grant the petition to confirm the arbitration award and enter judgment pursuant to the terms of the corrected arbitration award.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/13/2026.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: ***Sandra Flores v. State Center Joint Community College District***
Superior Court Case No. 25CECG05483

Hearing Date: August 19, 2026 (Dept. 503)

Motion: by Defendant Moonlight Packing Company, LLC to Compel Initial Responses to (1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; and (3) Request for Production, Set One, from plaintiff Sandra Flores

Tentative Ruling:

To grant each of the motions to compel initial responses to form and special interrogatories, and request for production of documents. Within ten (10) days of service of the order by the clerk, plaintiff Sandra Flores shall serve verified responses, without objections, to Form Interrogatories—General, Set One; Special Interrogatories, Set One; and Request for Production, Set One; and produce all documents responsive to the Request for Production.

To impose monetary sanctions in the total amount of \$1,005.00 against plaintiff Sandra Flores, in favor of defendant Moonlight Packing Company, LLC. Within thirty (30) days of service of the order by the clerk, plaintiff Sandra Flores shall pay sanctions to defendant Moonlight Packing Company, LLC counsel at Vogl Meredith Burke & Streza LLP.

Explanation:

Initial Responses to Interrogatories and Request for Production

Within 30 days of service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party. (Code Civ. Proc., § 2030.260.) Within 30 days of service of a demand for inspection, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party. (Code Civ. Proc., § 2031.260.) A party that fails to serve a timely response to a discovery request waives “any objection” to the request. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).) The propounding party may move for an order compelling a party to respond to the discovery request. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).)

To date, defendant Moonlight Packing Company, LLC (“defendant”) has received no response to the interrogatories and request for production propounded on plaintiff Sandra Flores (“plaintiff”). (Streza Decls., ¶ 7.) Accordingly, an order compelling plaintiff to provide initial, verified responses is warranted. (Code Civ. Proc. § 2030.290, subd. (b), 2031.300 subd. (b).) All objections are waived. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Monetary Sanctions

Sanctions are mandatory unless the court finds that the party acted "with substantial justification" or other circumstances that would render sanctions "unjust." (Code Civ. Proc., §§ 2030.290 subd. (c), 2031.300, subd. (c).)

The court finds no circumstances that would render the mandatory sanctions unjust. Defendant was entitled to propound the discovery at issue. (Code Civ. Proc., § 2030.020, subd. (b); 2031.020, subd. (b); 2033.020, subd. (b).) Plaintiff thereafter was obligated to provide timely, verified responses, or seek other timely relief. As plaintiff did neither, defendant's motions, and request for sanctions, are appropriate.

Defendant seeks sanctions in the amount of \$2,655, calculated at \$885 per motion. However, the amount of sanctions may be reduced as the motions are straightforward, without issue, and arising from the same set of facts. The motions are virtually identical. Further, defendant has not needed to spend time on the anticipated opposition, reply, and hearing or to meet and confer. The court finds it reasonable to allow for three hours of preparation for all three motions, calculated at counsel's hourly rate of \$275 per hour, and to allow for recovery of the three motion filing fees. Accordingly, monetary sanctions will be imposed in the total amount of \$1,005.00 against plaintiff Sandra Flores.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/17/2026.
(Judge's initials) (Date)